

1. Safeguarding Amendment:

Clause 11 (Misleading the Public), page 10, line 19: In paragraph (6)(b), after the word “act”, insert:

“which may include, but is not limited to, the following conditions—

- (i) the act consisted solely of an honest mistake, an honestly held belief later found to be incorrect, an honestly made but unfulfilled promise, or an honestly intended but incorrect prediction of future events;
- (ii) the act was merely negligent rather than recklessly deceitful, in that they were not aware of a substantial risk that the act was deceitful and did not proceed in disregard of such a risk;
- (iii) where the allegation is that they deliberately chose not to expose themselves to information correcting their act, it is a defence if they can show they did not intentionally avoid such information and took reasonable steps to become aware of information that might contradict it;
- (iv) at the time of the act they warned the public that there was a material risk of inaccuracy or incompleteness in good faith;
- (v) the act consisted solely of the expression, in good faith, of an opinion or belief protected by Article 10 of the Convention rights within the meaning of the Human Rights Act 1998, and its prosecution would chill or restrict freedom of expression and debate;
- (vi) the act was said or done in proceedings in Parliament, where it was protected by parliamentary privilege, or in proceedings of a devolved legislature, which do not enjoy parliamentary privilege under the Bill of Rights 1689, and thus this limb provides a statutory exemption, so that it does not constitute an offence under this section;
- (vii) the act was reasonably necessary to prevent a serious and imminent threat to national security or the national economy; or
- (viii) before the act caused or contributed to causing harm they retracted or corrected the act, issued a public apology, and ensured that the retraction or correction and apology had comparable prominence to the original act.”

Explanatory Statement:

This safeguarding amendment addresses concerns raised by parliamentarians regarding their inclusion within the “Misleading the Public” offence in section 11 by specifying matters that may amount to a reasonable excuse for the purposes of the defence in section 11(6)(b), so as to facilitate their inclusion within that offence. (48 words)

2. All Legislators Amendment

In Schedule 2, Part 2, paragraph 3(5), after sub-paragraph (b), insert:

“(c) in the case of an office, the office holder is a member of the House of Commons, the House of Lords, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.”

Explanatory Statement to be submitted to the Public Bills Office:

This amendment adds members of all United Kingdom legislatures to the Schedule 2, Part 2 definition of “public official”, so that they are subject to the same Duty of Candour and Assistance and the offence of Misleading the Public as most other public officials. (44 words)

3. Amendment to correct the name of the “Misleading the Public” offence:

In section 11 and elsewhere in this Bill, in so far as those words refer to the offence under section 11, for “Misleading the Public”, “misleading the public” and “mislead” substitute respectively “Deceiving the Public”, “deceiving the public” and “deceive”.

Explanatory Statement to be submitted to the Public Bills Office:

This amendment changes the name of the offence under section 11 from “Misleading the Public” to “Deceiving the Public”, and makes corresponding changes elsewhere in the Bill, to correctly reflect that the offence applies only to acts involving intentional or reckless deception, rather than to acts that are merely misleading. (49 words)